



2025:AHC:178039-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 34794 of 2025

Gagan Deep Sethi And Another

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Gaurav Pandey, Rakesh Dubey
Counsel for Respondent(s)	:	C.S.C., Usha Kiran

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioners, learned Standing Counsel for the respondent No.1 and Sri Anubhav Singh, learned counsel for the respondent No.3.

2. By means of the present writ petition, the petitioners have prayed for the following reliefs:

"(1) Issue a writ, order or direction in the nature of mandamus commanding the respondent No.2 & 3 to execute and shift the Electricity Pole of 33 K.V.A. situated in front of the petitioner's gate to any other place within stipulated period as prescribed under Rule 4.45 (A) (d) of U.P. Electricity Supply Code, 2005.

(2). Issue a writ, order or direction in the nature of mandamus commanding the respondents to comply the decision taken by the Boards in its minutes of meeting dated 26.12.2023 for shifting of Pole of 33 K.V.A. LT Line to any other place for safety and security of the petitioner's premises.

(3) Issue any other writ, order or certiorari to quash the impugned order petitioner as this this Hon'ble court may deem fit and proper in the present facts and circumstances of the case.

3. It is stated that the petitioners have submitted several representations to the respondent No.3 to consider their grievances but the respondent No.3 is

not paying any heed to it. It is further stated that the amount of Rs.23,44,397/- has already been deposited by the petitioners for shifting of electricity pole on 29.11.2024, copy of receipt is enclosed as Annexure No.5 to the writ petition.

4. Learned counsel for the respondents submits that no useful purpose would be served in keeping the writ petition pending and appropriate direction may be issued to the respondent No.3 to consider the grievance of the petitioners.

5. Considering the facts and circumstances of the case and without adverting into the merits of the case, the writ petition is **disposed off** permitting the petitioners to file a fresh representation alongwith certified copy of this order raising all their grievances before the respondent No.3-Managing Director, KESCO, Kanpur Nagar within a period of one month from today. In case, any such representation is filed by the petitioners, the respondent No.3 shall consider and decide the same in accordance with law within a period of two months thereafter from the date he receives the representation.

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)

October 7, 2025

SS